POLICYMAKER & INSTITUTIONAL PORTAL

# Legislative Packet

The National Sovereignty and Resilience Act — a citizen-authored discussion draft

37 titles · 233 sections · Schedules A–G
Prepared for congressional staff, committee counsel, and policy reviewers
Version 3.0 · November 2026 · Principal drafter: Santonio D. Sanders

**DISCUSSION DRAFT · NOT INTRODUCED · OPEN TO ANY SPONSOR**

**The American Deal — What America Owes You™**

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# 1. What the NSRA is

The National Sovereignty and Resilience Act (NSRA) is a citizen-authored federal discussion draft of 37 titles and 233 sections. It has not been introduced and is open to any sponsor; individual titles can be introduced as stand-alone bills. It is a mechanical enforcement framework: Congress sets the numeric triggers in the statute itself, and proceeds route into the Sovereign Infrastructure Reinvestment Fund (SIRF) under standing statutory appropriations.

Two design commitments answer the first two questions staff ask. (1) Congress, not the agency, sets every major policy choice and numeric trigger in the text, leaving agencies ministerial computation rather than delegated policymaking (a deliberate response to West Virginia v. EPA). (2) Small businesses under $10M in annual revenue are expressly exempt from Covered Entity obligations.

### Key figures at a glance

| Figure | Value | Evidence status |
|---|---|---|
| Revenue at full ramp (Years 3–5) | $749B/yr | Gov. baseline + internally modeled |
| Year 1 statutory base revenue | ~$472B | Schedule G, Section 2 |
| Modeled annual deficit reduction | $554B | Modeled · sensitivity tested (Sec. 3406) |
| Balanced budget (central estimate) | Year 4 | Modeled (range Years 3–5) |
| Uninsured people covered (BMP) | ~30M | ~27M before 2026 + CBO-projected 3.4M rise after enhanced credits expired |
| Small-business exemption | < $10M revenue | Statutory text verified |

# 2. How it pays for itself — modeled revenue

No new broad-based taxes on households or small businesses. Representative streams with their statutory sections:

| Stream (sec.) | Yield/yr | Basis | Conf. |
|---|---|---|---|
| SS payroll cap elimination (2408) | $150B | SSA/CBO wage-base data | High |
| Corporate rate 21%→28% (2409) | $110B | JCT corporate-rate scoring | High |
| IRS enforcement fund, $15B → net (2406) | $90B | CBO IRS-enforcement ROI | Med |
| Carbon dividend fee (2410) | $85B net | CBO carbon-fee analogs | Med |
| OECD Pillar Two (2411) | $75B | OECD/JCT estimates | Med |
| Financial transaction tax 0.1% (2413) | $75B | JCT FTT scoring | Med |
| Step-up basis reform >$5M (2412) | $50B | JCT basis-reform scoring | Med |
| NIMA 0.18% domestic gross >$100M (2404) | $39.6B | Gross-receipts baseline | Med |
| Federal land + mineral royalty (2414) | $30B+ | Interior/ONRR data | Med |
| Financial-sector excess-profits assessment (2415) | $20B | Banking ROE baselines | Med |
| LBO interest cap, 30% EBITDA (2403) | $18B | JCT interest-limit analog | Med |
| Carried interest → ordinary income (2402) | $14B | JCT 2021 analog | High |
| Pharma parity savings — G7 (10-yr) | $550B | PNAS 2024 differential | Med-Hi |
| Wage Equalization Assessment (2303) | TBD | USITC pre-score required | Dev. |

*Full assumptions and citations: Schedule G and the Figure-by-Figure Verification guide. Sec. 005 requires CBO certification of revenue sufficiency before any title disbursing more than $500M a year activates; that gate is a control, not a substitute for official scoring. Baseline: CBO, The Budget and Economic Outlook: 2026 to 2036 (February 2026).*

# 3. Committee-jurisdiction map

Titles mapped to committees under House Rule X and Senate Rule XXV. Primary jurisdiction determines which panel must mark up a standalone provision. Preliminary; final referral is set by the Parliamentarians.

### Senate committees

| Committee | NSRA titles in primary or shared jurisdiction |
|---|---|
| Finance | II (SIRF), V (Child Prosperity), XIII (Pharmaceutical Parity), XIX (Benefit Accounting), XXI (Basic Minimum Coverage), XXIII (Trade & Allied Architecture), XXIV (Tax Reform), XXVI (Social Security), XXX (USMCA & Trade Enforcement), XXXIV (SIRF Architecture) |
| Banking | VI (Pensions & Capital Protection), XIV (Housing Cap), XVI (Capital Flight & Inflation), XX (Implementation Safeguards), XXII (Private Equity Accountability), XXXII (Dollar Sovereignty), XXXVI (Foreign Influence) |
| HELP | IV (Sourcing & Wage Enforcement), XIII (Pharmaceutical Parity), XV (Student Debt), XXI (Basic Minimum Coverage), XXVIII (Worker Organizing), XXXI (Global Health) |
| Judiciary | XVI (Capital Flight & Inflation), XVIII (Due Process & Standing), XX (Implementation Safeguards), XXVII (Press Freedom), XXXV (Executive Accountability) |
| Foreign Relations | XXIII (Trade & Allied Architecture), XXX (USMCA & Trade Enforcement), XXXI (Global Health), XXXVI (Foreign Influence) |
| Commerce | III (AI & Data Rights), XII (Manufacturing & Semiconductors), XXXIII (Sovereign Compute) |
| Energy & Natural Resources | IX (Energy & Fission), X (Water & Utilities), XVII (Build-Out & Hydropower) |
| Environment & Public Works | VIII (Mobility, Broadband & Rail), XI (Environmental Remediation), XVII (Build-Out & Hydropower) |
| Armed Services | XII (Manufacturing & Semiconductors), XXXIII (Sovereign Compute) |
| Homeland Security & Gov. Affairs | I (FMIA & Data Verification), XXXV (Executive Accountability) |
| Rules & Administration | 0 (Foundations & Definitions), XXIX (Stock Trading Ban) |
| Agriculture | VII (Agriculture & Food) |
| Budget | XXXV (Executive Accountability) |
| Veterans' Affairs | XXV (Veterans Health) |

### House committees

| Committee | NSRA titles in primary or shared jurisdiction |
|---|---|
| Ways & Means | II (SIRF), V (Child Prosperity), XIII (Pharmaceutical Parity), XIX (Benefit Accounting), XXI (Basic Minimum Coverage), XXIII (Trade & Allied Architecture), XXIV (Tax Reform), XXVI (Social Security), XXX (USMCA & Trade Enforcement), XXXIV (SIRF Architecture) |
| Energy & Commerce | III (AI & Data Rights), IX (Energy & Fission), XII (Manufacturing & Semiconductors), XIII (Pharmaceutical Parity), XVII (Build-Out & Hydropower), XXI (Basic Minimum Coverage), XXXI (Global Health) |
| Financial Services | VI (Pensions & Capital Protection), XIV (Housing Cap), XVI (Capital Flight & Inflation), XX (Implementation Safeguards), XXII (Private Equity Accountability), XXXII (Dollar Sovereignty), XXXVI (Foreign Influence) |
| Judiciary | XVI (Capital Flight & Inflation), XVIII (Due Process & Standing), XX (Implementation Safeguards), XXVII (Press Freedom), XXXV (Executive Accountability) |
| Foreign Affairs | XXIII (Trade & Allied Architecture), XXX (USMCA & Trade Enforcement), XXXI (Global Health), XXXVI (Foreign Influence) |
| Education & Workforce | IV (Sourcing & Wage Enforcement), XV (Student Debt), XXVIII (Worker Organizing) |
| Transportation & Infrastructure | VIII (Mobility, Broadband & Rail), XI (Environmental Remediation), XVII (Build-Out & Hydropower) |
| Armed Services | XII (Manufacturing & Semiconductors), XXXIII (Sovereign Compute) |
| Natural Resources | X (Water & Utilities), XVII (Build-Out & Hydropower) |
| Oversight & Gov. Reform | I (FMIA & Data Verification), XXXV (Executive Accountability) |
| Administration | XXIX (Stock Trading Ban) |
| Agriculture | VII (Agriculture & Food) |
| Budget | XXXV (Executive Accountability) |
| Rules | 0 (Foundations & Definitions) |
| Science | XXXIII (Sovereign Compute) |
| Veterans' Affairs | XXV (Veterans Health) |

## 4. Cross-committee sequencing

### Finance vs. HELP (Senate) — Pharmaceutical parity (Title XIII)

Frame the G7 pricing and compulsory-licensing trigger (Secs. 1301, 1303) as a Medicare pricing mechanism with Finance primary, and the FDA manufacturing and registry provisions (Secs. 1302, 1304) as a HELP rider. A joint hearing resolves sequencing; the Inflation Reduction Act used this split.

### Ways & Means vs. Energy & Commerce (House) — Coverage (Title XXI)

Move the Basic Minimum Plan financing and premium-credit consolidation (Secs. 2103, 2108) through Ways & Means and the carrier, delivery, and market-structure standards (Secs. 2102, 2104–2107, 2111) through Energy & Commerce as companion bills.

### Banking vs. Judiciary (Senate) — Housing and due process (Titles XIV, XVIII)

Keep the 50-unit cap and divestiture (Sec. 1401) with Banking / Financial Services and give the Title XVIII due-process framework its own Judiciary referral, which strengthens the takings and Mathews record.

### Armed Services vs. Commerce — Semiconductors and compute (Secs. 303, 1204, 2004; Title XXXIII)

National-security findings in Sec. 2004 support Armed Services primacy on the defense supply chain; Commerce takes sequential referral on the domestic-manufacturing incentives (the CHIPS Act model).

### Finance vs. Agriculture — Household stability (Sec. 506)

Draft the Transitional Household Stability Guarantee as a SIRF expenditure authorization (Finance / Ways & Means), not a SNAP amendment.

### Oversight / HSGAC vs. Budget vs. Judiciary — Executive accountability (Title XXXV)

Ethics, Inspector General, and payment-integrity provisions to Oversight / HSGAC; the Impoundment Control Act amendments (Sec. 3507) to Budget; the Emoluments civil action and post-service penalties (Secs. 3504–3505) to Judiciary.

### Transportation & Infrastructure vs. Natural Resources vs. Energy & Commerce — Build-out (Title XVII)

Dams and hydropower licensing (Secs. 1703–1704) to Natural Resources and Energy & Commerce (FERC); inspection, delivery standards, and review deadlines (Secs. 1705–1707) to T&I / EPW. Funding stays inside existing Sec. 905 and Sec. 1004 allocations, so no new authorization fight.

## 5. Hostile-witness stress test

The strongest argument a hostile witness would make against each high-exposure provision, the answer already in the text, and the residual risk.

| Provision | Strongest hostile argument | Built-in answer | Residual |
|---|---|---|---|
| Title XIV — 50-unit MSA cap (Sec. 1401) | A taking; forced divestiture violates the Fifth Amendment; the cap is arbitrary. | Arms-length market-rate sales; independent-appraisal right with no sale more than 10% below appraisal; 4.5% quarterly absorption throttle; takings claims preserved in the Court of Federal Claims; codifies a 2026 executive order. | LOW |
| Title XIII / Schedule F — G7 pharma parity | Destroys R&D; compulsory licensing violates TRIPS Art. 31. | Voluntary pathways before mandatory triggers; statutory royalty rates preserve R&D returns; TRIPS public-health and excessive-pricing exceptions; G7 median is a market benchmark, not a price control. | MED |
| Sec. 905(c) — Fossil fuel clean energy migration | Destroys energy-community jobs; no authority to mandate a private transition. | Funded transition with retraining, community development, and priority interconnection; no region bears disproportionate cost. | LOW |
| Title XXI — Basic Minimum Plan | Unfunded liability; CBO will score trillions in new deficit. | 7-Subledger sourced revenue attribution; consolidation of existing Medicaid, CHIP, and ACA subsidy spending; Sec. 005 revenue-sufficiency gate. The question is whether revenue assumptions are credible. | MED |
| Sec. 1601(c) — Pre-deprivation judicial authorization | Unconstitutional constraint on enforcement; Jarkesy requires Article III juries. | Penal remedies routed to Article III courts with the jury right preserved (Sec. 1606); administrative officers limited to status-quo preservation; strengthens the Mathews record. | LOW |
| Title XXIV — FTT and Pillar Two (Secs. 2411, 2413) | FTT is distortionary and drives volume offshore; Pillar Two revenue is speculative. | Rates calibrated to U.S. market-depth data; conservative behavioral assumptions; Pillar Two estimates use Treasury/JCT methods. The hardest fiscal question. | MED |
| Title IV / Sec. 2303 — Wage arbitrage and WEA | Unconstitutional interference with private labor contracts; WTO conflict. | Commerce and Necessary-and-Proper authority on NLRA/FLSA precedent; WEA requires a USITC pre-score and has statutory safeguards. | MED |
| Sec. 301 — Data Commons Tariff | Unconstitutional tax on interstate commerce; conflicts with WTO. | Structured under Art. I, Sec. 8; targets foreign-originated data monetization; proceeds routed to household energy relief. | MED |
| Title XXXV — Emoluments and impoundment (Secs. 3504, 3507) | Separation of powers; plaintiffs lack standing; Congress cannot bind presidential spending discretion. | Plaintiffs limited to those with concrete injury, the Attorney General, or a House by resolution; ICA amendments regulate Congress's own appropriations; removal power untouched (notice rules only, consistent with Trump v. Slaughter). | MED |

# 6. Constitutional posture

Embedded defenses in the text: Mathews v. Eldridge pre-deprivation notice schedules (Secs. 1802, 1804); an enumerated-sector limit addressing major questions (Sec. 004(c-1)); Article III standing specifications and per-title Commerce Clause findings (Secs. 1801, 1805(d)); and severability with fallback appropriations (Sec. 205).

Hardened against recent doctrine: after SEC v. Jarkesy (2024), no civil penalty, clawback, or forfeiture is finally assessed except by a U.S. District Court with the jury right preserved (Sec. 1606). After Trump v. Slaughter (2026), officers and board members the bill creates are removable at will. SIRF draws are express standing appropriations on the CFPB v. CFSA (2024) model, with enforcement budgets separated from collected penalties.

Open items are documented rather than hidden, in the Open Technical Questions memo: proportionality governors for fixed penalty multipliers, preserving an Article III takings remedy, and a 28 U.S.C. §1498 model for patent recapture.

# 7. Priority entry points

**Congressional stock trading ban — Title XXIX (House Administration / Senate Rules or HSGAC)**
Already near the floor in both chambers in 2026. Title XXIX is the full-ban version: divestiture, executive branch and judges included, citizen enforcement. A strong standalone or amendment vehicle in the 120th Congress.

**Institutional homebuyer cap — Title XIV (Financial Services / Banking)**
Codifies the January 20, 2026 executive order on institutional purchases of single-family homes, with the divestiture, compensation, and enforcement framework an order cannot supply.

**Pharmaceutical parity — Title XIII (Finance / Ways & Means, HELP / E&C)**
G7-median pricing has appeared in prior vehicles; the automatic compulsory-licensing trigger is the novel element. File standalone first to establish the record.

**Veterans health — Title XXV (Veterans' Affairs)**
Veterans' Affairs panels are among the most bipartisan in Congress and regularly pass standalone veterans-health bills; Title XXV supplements, and does not supersede, the PACT Act.

**Manufacturing, semiconductors, and build-out — Titles XII, XVII, XXXIII; Secs. 303, 2004**
Aligns with CHIPS-Act infrastructure and draws economic nationalists, defense hawks, and industrial-policy advocates at once; Title XVII adds hydropower, dam safety, and fixed-schedule permitting.

# 8. Evidence standard and how to engage

Every material claim is classified by source authority, calculation method, confidence, sensitivity, and external-review status. Independent and congressional scoring are pending and welcomed. The full statutory text, Schedule G methodology, Title Briefs, and the Figure-by-Figure Verification guide are at TheAmericanDeal.org/bill-text. To request a title-specific briefing or a working session with the drafter: contact@theamericandeal.org.